

ASCII MASTER FLOW – PANEL 1/12: Canonical scope: Part XIV services, not the PSC institution

ROOT QUESTION

How can an elected executive control administration without creating partisan tenure?

OWNER SCOPE

Articles 308-314 -> recruitment, tenure, discipline and All-India Services.

Articles 315-323 -> Public Service Commissions; treated as a distinct institution topic.

ARTICLE 308

definition provision with present territorial reading after constitutional change.

ARTICLE 309

legislature regulates recruitment and service conditions.

President/Governor makes rules until competent legislation operates.

CLASSIFICATION

Union/State civil service | All-India Service | civil post | defence-connected civil post.

TRAP

departmental label does not by itself decide constitutional status.

ASCII MASTER FLOW – PANEL 2/12: Article 309 rule hierarchy and service-rule interfaces

AUTHORITY LADDER

Constitution -> competent Act -> Article 309/AIS rules -> lawful executive instruction.
A lower instrument cannot amend or contradict a higher one.

RULE FAMILIES

recruitment rules -> entry, eligibility and promotion.

conduct rules -> behavioural obligations and misconduct standards.

CCA rules -> classification, suspension, penalties, inquiry and appeal.

ARTICLE 311 FLOOR

service procedure must preserve constitutional safeguards unless an exact proviso applies.

TRAP

repeated departmental practice does not acquire statutory force by repetition.

ASCII MASTER FLOW – PANEL 3/12: Doctrine of pleasure and the Article 311 protection trigger

ARTICLE 310

Union/AIS/civil-post tenure at President's pleasure.

State civil tenure at Governor's pleasure.

The Constitution's express safeguards and special tenure codes limit the doctrine.

Shamsher Singh (1974)

formal executive heads ordinarily act through constitutional government.

ARTICLE 311 PERSONS

Union civil service | AIS | State civil service | holder of Union/State civil post.

ARTICLE 311 PENALTIES

dismissal | removal | reduction in rank.

ARTICLE 311(1)

no dismissal/removal by an authority subordinate to the appointing authority.

CORE RULE

pleasure is constitutional power under law, not personal whim.

ASCII MASTER FLOW – PANEL 4/12: Article 310(2) and Articles 312A-314 historical closure

ARTICLE 310(2)

specialized qualified outsider + agreed tenure + non-misconduct early exit
-> contract may provide compensation.
Not a general severance guarantee for every temporary or lateral appointee.

ARTICLE 312A

Parliament may vary or revoke specified former Secretary-of-State service conditions.

ARTICLE 313

pre-Constitution service law continues so far as consistent until replaced.

ARTICLE 314

repealed by the 28th Amendment, 1972.

PURPOSE

complete Part XIV without treating colonial-transition clauses as daily service rules.

ASCII MASTER FLOW – PANEL 5/12: Article 311(2): inquiry and three exceptions

REGULAR ARTICLE 311(2) ROUTE

charges -> evidence -> reasonable opportunity -> inquiry finding -> competent penalty.

Parshotam Lal Dhingra (1957) + Khem Chand (1957)
punitive-foundation and reasonable-opportunity principles.

42ND AMENDMENT EFFECT

removed the separate constitutional opportunity on proposed penalty,
not the charge-and-inquiry safeguard.

THREE EXCEPTIONS

- (a) conviction on criminal charge.
- (b) inquiry not reasonably practicable; written reasons required.
- (c) President/Governor satisfied inquiry not expedient in State security.

Union of India v. Tulsiram Patel (1985)
exceptions are constitutional but their jurisdictional facts and legality remain reviewable.

ECIL v. B. Karunakar (1993)
inquiry-report supply and prejudice analysis strengthen fair disciplinary process.

ASCII MASTER FLOW – PANEL 6/12: Penalty, termination and employment-status distinctions

PENALTIES

dismissal may carry future-employment consequences under rules.

removal is distinct | reduction in rank is punitive demotion.

TERMINATION SIMPLICITER

form is not decisive; motive and foundation determine punitive character.

OTHER ACTIONS

suspension ordinarily interim | compulsory retirement may be punitive or non-punitive

| probation/temporary exit requires the foundation test.

STATUS SCREEN

civil post -> Article 311 may apply.

constitutional office -> special constitutional code first.

statutory-body/PSU employee -> employer, statute and rules control.

contractor/outsourced worker -> contract, labour law and real-control facts.

TRAP

public employment, office under State and civil post are not interchangeable labels.

ASCII MASTER FLOW – PANEL 7/12: Article 312 and the All-India Services federal bridge

CREATION ROUTE

Rajya Sabha resolution by at least two-thirds of members present and voting that national interest requires one or more new All-India Services
-> Parliament may create by law.

EXISTING AIS

IAS | IPS | Indian Forest Service.

Indian Foreign Service is a Central Civil Service, not AIS.

DUAL CONTROL

Union recruitment/cadre framework + State posting and field administration

-> shared career and deputation system.

AIJS

constitutionally enabled under Article 312; no post below district judge; not established.

FEDERAL GAIN

national standards and integration.

FEDERAL RISK

deputation conflict, centralisation and weak State voice.

ASCII MASTER FLOW – PANEL 8/12: Article 335, neutrality, anonymity and public-service ethics

ARTICLE 335

SC/ST claims considered consistently with administrative efficiency,
subject to the constitutional proviso on qualifying marks/standards for promotion.

NEUTRALITY

non-partisanship + constitutional commitment + candid advice + lawful implementation.

ANONYMITY

ministerial responsibility protects ordinary internal advice,
but recordkeeping, courts, RTI law and accountability rules create lawful disclosure routes.

ETHICS STACK

integrity | objectivity | impartiality | political neutrality | empathy | accountability.

ACCOUNTABILITY TRACKS

departmental discipline | vigilance | criminal law | audit | legislative/judicial review.

LIMIT

neutrality is not resistance to lawful elected policy or silence about illegality.

ASCII MASTER FLOW – PANEL 9/12: Specialists, lateral entry, training and performance management

GENERALIST VALUE

coordination, field experience and whole-of-government perspective.

SPECIALIST VALUE

technical depth, regulatory knowledge and domain continuity.

LATERAL ENTRY

post-specific recruitment mode -> equality, recruitment rules, UPSC-consultation question, reservation, tenure, conflict and cooling-off controls must be checked.

MISSION KARMAYOGI

competency-based capacity building + iGOT learning infrastructure
-> role mapping -> continuous learning -> workplace application.

PERFORMANCE

outcome + legality + process quality + citizen impact + team development.

LIMIT

course completion or short contracts do not themselves prove better administration.

ASCII MASTER FLOW – PANEL 10/12: Discipline, vigilance, criminal law and remedy tracks

CONDUCT BREACH

conduct rule -> CCA inquiry -> proportionate service penalty -> departmental remedy.

CORRUPTION / CRIME

vigilance or criminal investigation -> prosecution under competent law.

Article 311 does not bar investigation or trial.

SERVICE DISPUTE

CAT where jurisdiction applies -> High Court Division Bench review after L. Chandra Kumar (1997).

TRANSFER / ORAL ORDER PRESSURE

T.S.R. Subramanian (2013) -> Civil Services Boards, tenure stability and written directions.

CORE BALANCE

fair discipline protects both accountable government and honest administration.

ASCII MASTER FLOW – PANEL 11/12: Tribunals, transfer reform and the case-law accountability spine

CAJ INTERFACE

Article 323A/Administrative Tribunals Act route for covered service disputes.

L. Chandra Kumar (1997)

tribunal decisions remain subject to High Court judicial review.

T.S.R. Subramanian (2013)

Civil Services Boards, tenure stability and written recording of oral directions.

TRANSFER PROBLEM

formal Article 311 security may coexist with informal pressure through posting control.

REFORM PACKAGE

stable but reviewable tenure | written orders | merit and domain pathways

| fair discipline | protected disclosure | transparent appraisal | reasoned transfers.

VERDICT

security without accountability breeds insulation; control without security breeds compliance.

ASCII MASTER FLOW – PANEL 12/12: UPSC traps, supporting PYQ and qualified answer synthesis

PRELIMS FIREWALL

Article 309 legislature first | rules are subordinate legislation
| pleasure not personal | Article 311 covers civil posts
| three exceptions exactly | written reasons for clause (b)
| State security for clause (c) | Rajya Sabha gateway for AIS
| IFS not AIS | AIJS enabled, not established | CAT review survives.

SUPPORTING 2020 GS-II ROUTE

institutional quality and civil-service reform for democracy.

MAINS SPINE

permanent executive purpose -> 309 rules -> 310 pleasure
-> 311 fairness/exceptions -> AIS federal bridge -> Article 335
-> neutrality/accountability -> capacity and tenure reform.

CONCLUSION

professional autonomy is legitimate only inside constitutional responsibility.